

STATE OF NEW YORK

233--B

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. EACHUS, COLTON, BUTTENSCHON, DeSTEFANO, JENSEN, SAYEGH, SANTABARBARA, LEMONDES, McDONOUGH, TAYLOR, GIBBS -- read once and referred to the Committee on Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to establishing a task force on safety in school transportation; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The education law is amended by adding a new section 3639
2 to read as follows:

3 § 3639. Task force on safety in school transportation. 1. There is
4 hereby created a task force on safety in school transportation with the
5 purpose of reviewing and promoting safety in school transportation.

6 2. The task force shall consist of eighteen members appointed as
7 follows: five members appointed by the governor, four members appointed
8 by the temporary president of the senate, and four members appointed by
9 the speaker of the assembly, one member appointed by the minority leader
10 of the senate, and one member appointed by the minority leader of the
11 assembly. The task force shall also include the commissioner or the
12 commissioner's designee; the commissioner of transportation or such
13 commissioner's designee; and the commissioner of the department of motor
14 vehicles or such commissioner's designee. The members appointed to the
15 task force shall include, but not be limited to: education and communi-
16 ty stakeholders; parents; teachers; administrators; and school bus driv-
17 ers and other school bus personnel who are members of a labor union.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 3. It shall be the duty of the task force to study and issue recommen-
2 dations related to student safety in school transportation. The task
3 force shall review and make recommendations on:

4 a. existing state laws, regulations, and programs that address school
5 bus safety, and make recommendations for their improvement, including
6 any recommendations necessary to ensure pedestrian safety and the safety
7 of students;

8 b. examining the possibility of requiring a state department or office
9 to conduct a biannual review of all aspects of school bus safety and to
10 issue recommendations for additional action or oversight, as appropri-
11 ate;

12 c. developing a plan to phase in any school bus safety measures recom-
13 ended by the task force through retrofitting and prospective vehicle
14 purchases, and identify the potential application of vehicle sensor
15 technology to improve school bus safety;

16 d. identifying best practices for the designation of school bus stops;

17 e. the current safety status of students who walk to and from school
18 and identify strategies that support safe pedestrian behavior by
19 students between their homes and schools, including as they walk to and
20 from bus stops and board and exit buses;

21 f. identifying safety protocols to be followed by school bus drivers
22 and school bus aides, including safeguards to ensure that protocols are
23 followed when a substitute driver or school bus aide is assigned to a
24 school bus;

25 g. developing recommendations to curb illegal passing of school buses;
26 and

27 h. determining if there is a need for additional public education
28 programs that promote school bus safety.

29 4. Vacancies in the membership of the task force shall be filled in
30 the same manner as the original appointments were made. The members of
31 the task force shall serve without compensation but may be reimbursed
32 for necessary expenses incurred in the performance of their duties.

33 5. The task force shall organize as soon as is practical upon the
34 appointment of a majority of its members. The chair of the task force
35 shall be designated by a simple majority vote of all members of the task
36 force.

37 6. The department shall provide staff and related support services to
38 the task force. The task force shall also be entitled to call upon the
39 services of any state, county, or municipal department, board, commis-
40 sion or agency, as may be available to it for these purposes, and to
41 incur such traveling and other miscellaneous expenses as it may deem
42 necessary for the proper execution of its duties and as may be within
43 the limit of funds appropriated or otherwise made available to it for
44 these purposes. The task force may meet and hold hearings at such places
45 as it shall designate.

46 7. The task force shall create a final report regarding all findings
47 and recommendations to be delivered no later than eighteen months after
48 the effective date of this section, to the governor, the temporary pres-
49 ident of the senate, the speaker of the assembly, the chair of the
50 senate education committee, the chair of the assembly education commit-
51 tee, the chair of the senate transportation committee and the chair of
52 the assembly transportation committee.

53 § 2. This act shall take effect immediately and shall expire and be
54 deemed repealed twenty-four months after it shall have become a law.